

Petitioner v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 8 October 2025 · Writ-C No. 33839 of 2025 · **Writ disposed; Assessing Officer to decide objection under clause 6.8 after hearing, subject to deposit.**

HEADNOTE

Demand of Rs. 92,554 challenged for want of hearing. Without deciding whether clause 6.8 procedure was followed or the demand's validity, the writ is disposed of: on deposit of Rs. 10,000 the consumer may apply to the Assessing Officer, who shall decide the objection by a reasoned order after confronting adverse material and granting personal hearing.

FACTUAL SUMMARY

The petitioner challenged a demand notice dated 24 September 2024 seeking recovery of Rs. 92,554 towards electricity dues from the distribution corporation. He claimed that no opportunity of hearing had been afforded before the demand was created. The Court found it unclear whether the assessment procedure under the Supply Code had been fully complied with, and saw no useful purpose in keeping the petition pending or calling for a counter-affidavit at that stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

hearing before assessment of electricity dues

HOLDING

Where it is unclear whether assessment procedure was fully complied with and the consumer alleges want of hearing before a demand, the writ is disposed of by directing the Assessing Officer under clause 6.8 to decide the objection by a reasoned speaking order after confronting the consumer with all adverse material and granting personal hearing, subject to deposit of Rs. 10,000 towards the disputed demand and filing of an application. ¶ 4-5

PRINCIPLE TAGS

opportunity-before-final-assessment Demand of Rs. 92,554 challenged for want of hearing. Without deciding whether clause 6.8 procedure was followed or the demand's validity, the writ is disposed of: on deposit of Rs.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE UNDER CLAUSE 6.8 HAD BEEN FULLY COMPLIED WITH BEFORE THE DEMAND

¶ 3

NOT DECIDED — VALIDITY OF THE DEMAND OF RS. 92,554

¶ 3-5